



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Mark Christensen, Planner II
Subject: PLN-22-00003 / Urban Use Overlay District Relocation and Amendments
Date: February 28, 2022

Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and First Reading 02/28/2022
- Public Services Committee 03/08/2022
- Second Reading 03/14/2022
- Public Services Committee 03/22/2022
- Third and Final Reading 03/28/2022

Planning Commission Recommendation:

The Planning Commission heard this item at their February 22, 2022 meeting and **unanimously** recommended the Governing Body approve this application, with Robert Chamberlin abstaining.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE UNIFIED DEVELOPMENT CODE (UDC) REPEALING UDC 5.4.7, UU – URBAN USE OVERLAY DISTRICT, AND CREATING UDC 5.6.9, UU – URBAN USE OVERLAY DISTRICT.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the UDC.

Section 2. That the intent of this text amendment is to facilitate Urban and Infill Development in the City of Cheyenne.

Section 3. That on February 22, 2022, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 4. That sub-section 5.4.7, Urban Use Overlay, is **deleted** in its entirety.

Section 5. That sub-section 5.6.9, Urban Use Overlay, is **created** to read as follows:

- “ a. **Intent.** The UU overlay district is intended for Urban and Infill Development. The UU district is intended to transition and step down from the urban core and other urban areas of Cheyenne into the surrounding neighborhoods.
- b. **Applicability.** The UU overlay district is applicable to various lands envisioned for urban development. A base zone district of P, MUB, or MUR must be in place in order for the UU overlay to apply.
- c. **Context.** This district is most appropriate in areas with existing or future urban development patterns.
- d. **Lot and Building Standards.** The following lot and building standards shall apply and replace the lot standards for the underlying district for all uses:

TYPE UU: Urban Use Overlay District Lot and Building Standards		
Lot Area		No minimum or maximum
Lot Frontage		n/a
Setbacks (Minimum)	Front	0’ minimum, 10’ maximum, or context of surrounding properties
	Side	0’ minimum, no maximum side setback 0’ minimum, 10’ maximum on street side setbacks

		5' minimum and 15' maximum on lot lines fronting and adjacent to the Reed Avenue ROW
	Rear	0'
Building Height		Buildings shall not have a pinnacle height that exceeds an elevation of 6,150' in the West Edge District.
Total Lot Coverage (max.)		90%, 100% if site provides a street furnishing or projection as listed in 5.4.7.f.4.

e. **Permitted and Restricted Uses.** This section shall apply when the underlying zoning district is P, MUR or MUB.

1. Permitted Uses

a. All uses allowed in the underlying zoning district are allowed as indicated in Table 5-1, except as specifically prohibited or allowed in subsections 5.4.7.e.2 below.

2. Prohibited Uses:

The following Uses are prohibited in the UU overlay base zone districts:

- a. Impoundment Yards
- b. Outdoor Sales
- c. Automobile Service Repair
- d. Automobile Service Station – Limited and General

3. Allowed by Conditional Use in all UU overlay base zone districts:

- a. Moderate Industrial

f. **Site and Building Design Standards.** The following development standards shall supplement those contained in this Code. Wherever possible, and if not exempted, development shall comply with the standards of Article 5 and Article 6 of the UDC, and the standards of this section; however, in the event of a direct conflict the standards of this section shall govern.

1. **Parking, Lot Access and Circulation.** The minimum required Automobile Parking standards of UDC 6.2.4.a shall not apply to property within the UU district.

(a.) **Bicycle Parking.** All new development or changes of use that require a Site Plan per section UDC 2.2.3.b. shall provide 2 bicycle parking spaces per 2,000 square feet of gross floor area.

- 1. Required bicycle parking is permitted in the ROW so long as the parking does not interfere with the 5' required ADA pedestrian zone.
- 2. Applicant will have the ability to provide cash-in-lieu for bicycle parking to the shared biking facilities fund.

2. **Commercial Building Design Standards.** Development shall comply with the standards of UDC 6.7. with the following modifications:

(a.) **West Edge Area.** Properties included in the UU overlay district that fall within the West Edge district, located between 24th Street and the Union Pacific Railroad from north to south and Carey Avenue to Missile Drive from

east to west, shall incorporate the design standards of UDC 6.7; or, as alternative compliance, shall incorporate the design guidelines from Chapter 5 of the 2016 West Edge Area Wide Plan into any development that requires a Site Plan Review per UDC 2.2.3.b.

- (b.) **Adaptive Reuse.** Adaptive reuse is encouraged in the Urban Use Overlay District. Developments that incorporate an existing structure designated as a significant building in any overlying subarea plan, such as the 2016 West Edge Area Wide Plan, shall receive an exemption from the standards of UDC 6.7. Buildings that receive this exemption shall incorporate design guidelines from the applicable plan.
- (c.) **Alternatives.** Minor deviations from the standards may be evaluated by the Director to meet the intent of the small scale commercial and mixed-use design standards of the UDC through an alternative design to allow a site-specific plan that is qualitatively equal to or better than the strict application of a design standard specified in this code. This procedure is not intended as a substitute for a variance or administrative adjustment or a vehicle for relief from standards of this Code. To grant an alternative design, the director shall find either:
 - 1. The proposed alternative design achieves the intent of the subject design standard to the same or better degree than the subject standard; achieves the goals and policies of PlanCheyenne or the applicable plan to the same or better degree than the subject standard; and results in benefits to the community that are equivalent to or better than compliance with the subject standard; or
 - 2. The required improvement would be ineffective because of locational, topographic, or site constraints while the alternative design can accommodate site-specific issues.
- 3. **Street Trees.** Shall comply with the standards of UDC 6.3.6.
- 4. **Street Furnishings and Projections into ROW.** May be placed in the ROW so long as the furnishing does not interfere with the 5' required ADA pedestrian zone. All street furnishings and projections into the ROW shall be shown and approved by the Site Plan process per UDC 2.2.3.b.
 - (a.) Street furnishings shall include benches, tables, chairs, decorative patio fencing, hosting stands, or other items permitted by the Director.
 - (b.) Other projections into the ROW may include awnings, patios, or other projections permitted by the Director.

Section 6. That the aforementioned Section of the UDC is hereby amended as set out within this ordinance and sections currently existing within the UDC not set out within this ordinance remain unchanged.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

(SEAL)
ATTEST:

PATRICK COLLINS, MAYOR

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune Eagle



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Planning and Development Department

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(Phone) 307-637-6282 (Fax) 307-637-6366

PLANNING COMMISSION

February 22, 2022

STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code of the City of Cheyenne, Wyoming, repealing UDC 5.4.7. UU – Urban Use Overlay District and creating UDC 5.6.9. UU – Urban Use Overlay District.

CASE NUMBER: PLN-22-00003

PREPARED BY: Mark Christensen, AICP, Planner II, Planning and Development

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code to repeal UDC 5.4.7. UU – Urban Use Overlay District and create UDC 5.6.9. UU – Urban Use Overlay District, noting the request meets the review criteria of UDC 2.4.1.d.

BACKGROUND AND DISCUSSION:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of Plan Cheyenne, and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

The City of Cheyenne Planning and Development Department drafted the Urban Use Overlay (UU) District in Spring of 2021 as part of on-going efforts to revitalize the West Edge District. The overlay was adopted into the Unified Development Code on June 28, 2021. Staff looked to mapping the UU Overlay District in late 2021 but noted that the regulations have been placed in the incorrect location in the UDC. Additionally, staff noted the verbiage in the Intent, Applicability, and Context limited the potential implementation of the UU Overlay District. This current effort remedies both situations. The proposed ordinance moves the UU Overlay District to 5.6.9. in the Special Purpose and Overlay Districts section of the UDC and proposes new verbiage in the Intent, Applicability, and Context of the District to allow more areas of the community to take advantage of the flexibility the UU Overlay District provides.

PROPOSED AMENDMENTS:

The proposed amendments include the creation and amendments of the following sections taken from the drafted ordinance:

Section 4. That sub-section 5.4.7, Urban Use Overlay, is deleted in its entirety.

Section 5. The subsection 5.6.9, Urban Use Overlay, is created to read as follows:

- a. **“Intent.** The UU overlay district is intended for Urban ~~and Infill Development adjacent to the Central Business District of Downtown Cheyenne~~. The UU district is intended to transition and step down from the urban core and ~~other urban areas~~ of Cheyenne into the surrounding neighborhoods.
- b. **Applicability.** The UU overlay district is applicable to various lands ~~envisioned for urban development adjacent to the Central Business District~~. A base zone district of P, MUB, or MUR must be in place in order for the UU overlay to apply.
- c. **Context.** This district is most appropriate in areas with ~~existing or future~~ urban development patterns.
- d. **Lot and Building Standards.** The following lot and building standards shall apply and replace the lot standards for the underlying district for all uses:

TYPE UU: Urban Use Overlay District Lot and Building Standards		
Lot Area		No minimum or maximum
Lot Frontage		n/a
Setbacks (Minimum)	Front	0' minimum, 10' maximum, or context of surrounding properties
	Side	0' minimum, no maximum side setbacks 0' minimum, 10' maximum street side setbacks 5' minimum and 15' maximum on lot lines fronting and adjacent to the Reed Avenue ROW
	Rear	0'
Building Height		Buildings shall not have a pinnacle height that exceeds an elevation of 6,150' in the West Edge District.
Total Lot Coverage (max.)		90%, 100% if site provides a street furnishing or projection as listed in 5.4.7.f.4.

- e. **Permitted and Restricted Uses.** This section shall apply when the underlying zoning district is P, MUR or MUB.
 1. **Permitted Uses:**
 - a. All uses allowed in the underlying zoning district are allowed as indicated in Table 5-1, except as specifically prohibited or allowed in subsections 5.4.7.e.2 below.
 2. **Prohibited Uses:**

The following Uses are prohibited in the UU overlay base zone districts:

 - a. Impoundment Yards

- b. Outdoor Sales
 - c. Automobile Service Repair
 - d. Automobile Service Station – Limited and General
- 3. Allowed by Conditional Use in all UU overlay base zone districts:**
 - a. Moderate Industrial
- f. **Site and Building Design Standards.** The following development standards shall supplement those contained in this Code. Wherever possible, and if not exempted, development shall comply with the standards of Article 5 and Article 6 of the UDC, and the standards of this section; however, in the event of a direct conflict the standards of this section shall govern.
 - 1. **Parking, Lot Access and Circulation.** The minimum required Automobile Parking standards of UDC 6.2.4.a shall not apply to property within the UU district.
 - (a.) Bicycle Parking.** All new development or changes of use that require a Site Plan per section UDC 2.2.3.b. shall provide 2 bicycle parking spaces per 2,000 square feet of gross floor area.
 - i. Required bicycle parking is permitted in the ROW so long as the parking does not interfere with the 5' required ADA pedestrian zone.
 - ii. Applicant will have the ability to provide cash-in-lieu for bicycle parking to the shared biking facilities fund.
 - 2. **Commercial Building Design Standards.** Development shall comply with the standards of UDC 6.7. with the following modifications:
 - (a.) West Edge Area.** Properties included in the UU overlay district that fall within the West Edge district, located between 24th Street and the Union Pacific Railroad from north to south and Carey Avenue to Missile Drive from east to west, shall incorporate the design standards of UDC 6.7; or, as alternative compliance, shall incorporate the design guidelines from Chapter 5 of the 2016 West Edge Area Wide Plan into any development that requires a Site Plan Review per UDC 2.2.3.b.
 - (b.) Adaptive Reuse.** Adaptive reuse is encouraged in the Urban Use Overlay District. Developments that incorporate an existing structure designated as a significant building in any overlying subarea plan, such as the 2016 West Edge Area Wide Plan, shall receive an exemption from the standards of UDC 6.7. Buildings that receive this exemption shall incorporate design guidelines from the applicable plan.
 - (c.) Alternatives.** Minor deviations from the standards may be evaluated by the Director to meet the intent of the small scale commercial and mixed-use design standards of the UDC through an alternative design to allow a site-specific plan that is qualitatively equal to or better than the strict application of a design standard specified in this code. This procedure is not intended as a substitute for a variance or administrative adjustment or a vehicle for relief from standards of this Code. To grant an alternative design, the director shall find either:
 - i. The proposed alternative design achieves the intent of the subject design standard to the same or better degree than the subject standard; achieves the goals and policies of PlanCheyenne or the applicable plan to the same or better degree than the subject standard; and results in benefits to the community that are equivalent to or better than compliance with the subject standard; or
 - ii. The required improvement would be ineffective because of locational, topographic, or site constraints while the alternative design can accommodate site-specific issues.
 - 3. **Street Trees.** Shall comply with the standards of UDC 6.3.6.
 - 4. **Street Furnishings and Projections into ROW.** May be placed in the ROW so long as the furnishing does not interfere with the 5' required ADA pedestrian zone. All street

furnishings and projections into the ROW shall be shown and approved by the Site Plan process per UDC 2.2.3.b.

- (a.) Street furnishings shall include benches, tables, chairs, decorative patio fencing, hosting stands, or other items permitted by the Director.
- (b.) Other projections into the ROW may include awnings, patios, or other projections permitted by the Director.”

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

“The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan.”

This proposed text amendment is consistent with the principles and policies within PlanCheyenne. Specifically, the proposed amendment addresses the following policies and principles:

- *Policy 1.1.B: Flexibility to Respond to Market Demands.*
The UU Overlay text amendment will provide flexibility with zoning regulations to promote infill development, adaptive reuse, and redevelopment of an important area in the City of Cheyenne. The flexibility should incentivize the market to consider developing in the West Edge.
- *Policy 1.4.A: Infill Opportunities*
The Urban Use Overlay text amendment provides the opportunity for infill development through regulations that promote flexibility, but also consider the character of the area in which they are located.
- *Policy 1.4.C: Downtown Revitalization and Mix of Uses*
The Urban Use Overlay can be applicable to the MUR, MUB, and P zone districts in or adjacent to downtown. As the Urban Use Overlay is applied to the West Edge it is anticipated to revitalize the area and further mix uses in the area. Staff anticipates the development of the West Edge will greatly benefit the downtown as a whole.
- *Policy 1.4.D: Infill and Revitalization Incentives*
The Urban Use overlay achieves several items that are mentioned in this policy; such as reducing parking minimums, providing flexible dimensional standards, promoting higher densities than currently permitted, and providing flexibility in design requirements for utilizing existing buildings.
- *Policy 2.3.A: Mix of Housing Types*
The Urban Use Overlay will lead to the West Edge being zoned MUB or MUR; each of which provide ample opportunities for a variety of housing.
- *Policy 3.2.B: Active Uses in the Street Level*
The Urban Use Overlay promotes active uses on the street level by permitting various street furnishings and projections into the Right of Way.

- *Principle 4.3: The Cheyenne Area will build a safe, multimodal transportation system that consists of streets, sidewalks, bicycle facilities, and transit*
The Urban Use Overlay promotes bicycle infrastructure and pedestrian amenities through increased bicycle parking and an active pedestrian zone.
- *Policy 5.1.A: Historic Building Restoration*
The Urban Use Overlay promotes building reuse and restoration with flexible site design and building placement requirements for utilizing existing buildings.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-602 (a): The governing body shall specify how regulations, restrictions and the district boundaries are to be determined, established, enforced, amended, supplemented or otherwise changed.

Assessment: State statute states that the governing body shall specify how regulations regarding zoning are established and enforced. The governing body possesses the authority to amend regulations and therefore can amend the *Unified Development Code* to reflect this text amendment.

WYO 15-1-601 (a): The governing body of any city or town, by ordinance, may:
(i) Regulate and restrict the:
(D) Density of the population
(E) Location and use of buildings, structures and land for trade, industry, residence or other purposes.

Assessment: This amendment proposes modifying the Unified Development Code for the purposes of regulating the location of buildings and density of the population; thus, fulfilling the requirements of this statute.

WYO 15-1-601(d): All regulations shall be made:
(ii) With reasonable consideration, among other things, of the character of the district and its peculiar suitability for particular uses;
(iii) With a view to conserving the value of buildings and encouraging the most appropriate use of land throughout the city or town.

Assessment: This amendment proposes modifying the Unified Development Code for the purposes of encouraging redevelopment and infill development in the City of Cheyenne with respect to the existing character of the districts to which these regulations are applied. Furthermore, these regulations contain provisions for height regulations to preserve views of existing prominent structures. Regulations of this nature are allowable under state statute and may be modified by the Governing Body.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

“The amendment promotes the general health, safety and public welfare.”

This amendment will promote general health, safety, and public welfare by reinvesting in the community and promoting walkable, mixed-use development. Furthermore, it is anticipated that this amendment will promote much needed housing development in the community.

CONCLUSION:

The Urban Use Overlay district provides an effective framework for redevelopment in near-downtown neighborhoods in Cheyenne, specifically in the West Edge District. However, staff feels this flexibility should also be available to more areas of the community. The proposed amendments allow for more utilization of the UU Overlay District and relocate the UU Overlay District to the correct location in the UDC. Staff is satisfied that this text amendment meets the review criteria of UDC 2.4.1.d.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments to the Unified Development Code to repeal UDC 5.4.7. UU – Urban Use Overlay District and create UDC 5.6.9. UU – Urban Use Overlay District, noting the request meets the review criteria of UDC 2.4.1.d.